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Attorneys for Plaintiff: CAVALRY SPV I, LLC, AS ASSIGNEE OF SYNCHRONY BANK

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Superior Court of California,
County of Los Angeles
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David W. Slayton,
Executive Officer/Clerk of Court,
By H. Martinez, Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF LOS ANGELES - LIMITED**

CAVALRY SPV I, LLC, AS ASSIGNEE OF
SYNCHRONY BANK,
Plaintiff,

vs.

ELIZABETH LOCKHART, an individual;

and DOES 1 through 10 inclusive.
Defendant.

Case No. 24CHLC00637

COMPLAINT FOR:

- 1. ACCOUNT STATED**
- 2. OPEN BOOK ACCOUNT**

DEMAND: \$2,139.04

Plaintiff alleges:

FACTS COMMON TO ALL CAUSES OF ACTION

1.Plaintiff is and at all times herein mentioned, CAVALRY SPV I, LLC, AS ASSIGNEE OF SYNCHRONY BANK, and successor in interest to original creditor, SYNCHRONY BANK.

2.Plaintiff is the only entity that purchased the debt after charge-off and its name and address is as follows: CAVALRY SPV I, LLC, AS ASSIGNEE OF SYNCHRONY BANK 1 American Lane Suite 220 Greenwich, CT 06831.

3.Plaintiff is a debt buyer, and is the sole owner of the debt at issue. Plaintiff's California Debt Collector License Number 10630-99.

4.The charge-off creditor at the time of charge-off is SYNCHRONY BANK, PO BOX 960061 ORLANDO, FL 32896-0061, and the account number associated with this debt is XXXXXXXXXXXXX0517.

5.Plaintiff is informed and believes that Defendant are individuals who currently reside

1 within the jurisdictional boundaries of the above entitled Court. Therefore, this Court is the proper
2 Court for trial of this action.

3 6.The name and last known address of the debtor as they appeared in the charge-off
4 creditor's records prior to the sale of the debt is ELIZABETH LOCKHART, 6940 FULTON AVE
5 APT 203 , NORTH HOLLYWOOD, CA 91605-6611.

6 7.Plaintiff is unaware of the true names or capacities, whether individual, corporate,
7 associate or otherwise of the Defendant sued herein as DOES 1 through 10 inclusive, and therefore,
8 sued the Defendant by such fictitious names. Plaintiff will amend this Complaint to show their true
9 names and capacities once ascertained.

10 8.Plaintiff believes and at all times mentioned herein, each of the Defendant was, and is,
11 the agent, servant and employee, employer of each of the other Defendant, and also acted in the
12 capacity of and as agent of the other Defendant. Plaintiff also believes that the individual
13 Defendant, and each of them, are jointly and severally liable that the actions described herein
14 were taken as actions for the benefit of the Defendant's separate and/or community property.

15 9.Plaintiff believes that, for value received, Defendant and each of them, executed and
16 delivered a credit card application to the original creditor, SYNCHRONY BANK or made such
17 application over the telephone or Internet. Pursuant to the aforementioned application,
18 SYNCHRONY BANK provided Defendant with a credit account, and granted use privileges on
19 the same, account number XXXXXXXXXXXXX0517 (hereinafter "Account").

20 10.Prior to the commencement of this action, the Account was assigned for value to the
21 Plaintiff and Plaintiff is its current holder.

22 11.Defendant agreed to repay SYNCHRONY BANK and any successors in interest, for
23 any charges on the Account including, but not limited to, charges for purchase of goods and service
24 and/or cash advances and balance.

25 12.Defendant used the Account to make purchases and/or to take cash advances and/or to
26 make balance transfers. Each time the Defendant used the Account to purchase goods and services
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1 and/or take cash advances and/or make balance transfers, Defendant reaffirmed their agreement to
2 repay SYNCHRONY BANK and its successors in interest for the amount of the purchase and/or
3 cash advances and/or balance transfers.

4 13.Monthly statements were sent to Defendant which itemized all payments made and
5 charges due on the Account.

6 14.The date of last payment on the subject account was on November 9, 2021.

7 15.Within the last four years, the Defendant failed to make payments as agreed on the
8 Account. Defendant has failed, refused and neglected to pay amounts due on the Account.

9 16.The debt balance at charge-off was \$2,179.04, and upon information and belief there is
10 \$0.00 in post charge off fees and \$0.00 in post charge off interest.

11 17.Subsequent to charge-off, and after applying any and all applicable payments and
12 credits, the Defendant owes Plaintiff \$2,139.04.

13 18.Although demand has been made upon said Defendant to pay said amount, no part has
14 been paid, and it is now due and owing.

15 19.Upon information and belief, SYNCHRONY BANK and successors in interest
16 including Plaintiff have duly performed all promises, conditions and agreements herein.

17 20.Plaintiff has complied with California Civil Code Section 1788.52.

18 21.Plaintiff has attached hereto as Exhibit A and incorporated herein by reference a copy
19 of Billing Statement and/or Account Records provided to the Defendant while the account was
20 active, demonstrating that the debt was incurred by the Defendant as described in California Civil
21 Code section 1788.52(b).

22 22.Plaintiff has attached hereto as Exhibit B and incorporated herein by reference a copy
23 of the Final Billing Statement and/or Transaction History.

24 23.Upon opening the Account with SYNCHRONY BANK, the Defendant(s) agree to
25 reimburse SYNCHRONY BANK, and hence Plaintiff as successor in interest for the costs related
26 to the collection of amounts owing on the Account. Plaintiff has been required to retain Mandarich
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1 Law Group, LLP to pursue collection of the amount due hereunder.
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3 **FIRST CAUSE OF ACTION**

4 **(Account Stated)**

5 24.Plaintiff refers to and incorporates paragraphs 1 through 23.
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7 25.Within the past 4 years, an account was stated in writing in which it was agreed that
8 Defendant were indebted in the amount previously referenced herein. Although demand has been
9 made upon Defendant, said amount of \$2,139.04 has not been paid, and it is now due, owing and
10 unpaid from Defendant to Plaintiff, as successor in interest.
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12 **SECOND CAUSE OF ACTION**

13 **(Open Book Account)**

14 26.Plaintiff refers to and incorporates paragraphs 1 through 25.
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16 27.Within the past 4 years, Defendant and each of them became indebted in the amount of
17 the previously mentioned herein for a balance due on a book account for goods sold and delivered
18 and/or services rendered by SYNCHRONY BANK. Although demand has been made upon
19 Defendant, said amount of \$2,139.04 has not been paid, and it is now due, owing and unpaid
20 including attorney's fees from Defendant to Plaintiff as successor in interest.
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2 WHEREFORE, Plaintiff prays for judgment against the Defendant as follows:
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- 4 1. For the damages and money in the sum of \$2,139.04,
5 2. For reasonable attorneys fees pursuant to statute;
6 3. For costs of suit incurred; and
7 4. For such other and further relief as the Court deems just and proper.
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9 5. Plaintiff remits all damages in excess of the jurisdictional amount of this Court.
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11 Dated: 12/31/2023

By: **MANDARICH LAW GROUP, LLP**

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A handwritten signature in dark ink, appearing to read 'Hayk', is written over a horizontal line.

[X] Hayk Stambultsyan, Esq.
Attorneys for Plaintiff

EXHIBIT A

Summary of Account Activity		Payment Information	
Previous Balance	\$1,767.88	New Balance	\$1,802.57
+ New Purchases	\$0.00	Minimum Payment This Period	\$103.00
- Payments	\$50.00	Amount Past Due	\$153.00
+/- Credits, Fees & Adjustments (net)	\$40.00	Total Minimum Payment Due	\$256.00
+/- Interest Charge (net)	\$44.69	Payment Due Date	12/01/2021
New Balance	\$1,802.57	PAYMENT DUE BY 5 P.M. EASTERN ON THE DUE DATE.	
Credit Limit	\$2,000.00	We may convert your payment into an electronic debit. See reverse side.	
Available Credit	\$197.00	Late Payment Warning: If we do not receive your Total Minimum Payment Due by the Payment Due Date listed above, you may have to pay a late fee up to \$40.00.	
Days in Billing Period	31	Minimum Payment Warning: Making only the Total Minimum Payment Due will increase the amount of interest you pay and the time it takes to repay your balance. For example:	
Pay online for free at: mysynchrony.com		If you make no additional charges using this card and each month you pay ...	
For Synchrony Bank customer service or to report your card lost or stolen, call 1-877-889-0721.		You will pay off the balance shown on this statement in about ...	
Best times to call are Wednesday - Friday.		And you will end up paying an estimated total of ...	
		Only the minimum payment	\$4,257.00
		If you would like information about credit counseling services, call 1-877-302-8797.	

Transaction Summary				
Tran Date	Post Date	Reference Number	Description	Amount
10/12/2021	10/12/2021	85348128X01DW7KES	PAYMENT - THANK YOU	(\$50.00)
			FEES	
11/01/2021	11/01/2021		LATE FEE	\$40.00
			TOTAL FEES FOR THIS PERIOD	\$40.00
			INTEREST CHARGED	
11/08/2021	11/08/2021		INTEREST CHARGE ON PURCHASES	\$44.69
			TOTAL INTEREST FOR THIS PERIOD	\$44.69
2021 Totals Year-to-Date				
Total Fees Charged in 2021				\$440.00
Total Interest Charged in 2021				\$487.79
Total Interest Paid in 2021				\$520.00

Interest Charge Calculation				
Type of Balance	Expiration Date	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charge
Purchases	NA	29.99%	\$1,754.52	\$44.69

* NOTICE: See reverse side and additional pages (if any) for important information concerning your account.

5302 CXH 1 7 6 211108 D PAGE 1 of 3 9073 3000 FRJ9 01DG5302

Pay online at mysynchrony.com or enclose this coupon with your check. Please use blue or black ink.

Total Minimum Payment Due	Past Due Amount	Payment Due Date	New Balance	Account Number
\$256.00	\$153.00	12/01/2021	\$1,802.57	0517

Payment Enclosed : \$

☐ **New address or e-mail?** Payment due includes \$ 153.00 past due. Please pay the past due amount PROMPTLY.
Check the box at left and print changes on back

ELIZABETH LOCKHART
6940 FULTON AVE APT 203
NORTH HOLLYWOOD CA 91605-6611

Make Payment to: SYNCHRONY BANK
PO BOX 960061
ORLANDO, FL 32896-0061

New Promotional Financing Plans

This notice is to let you know about some promotional financing plans that may be available for you when you use your card for **future** purchases. This is only a summary of key terms. At times, we may offer you other promotional financing plans for certain purchases. Details of available promotions will be provided to you at the time of your transactions. Not all plans or all plan periods will be available at every retailer. For purposes of this notification, your **Purchase Annual Percentage Rate ("APR") is 29.99%**. See the Interest Charge Calculation section of this billing statement to determine if this APR is variable. If a (v) is shown next to your APR, this APR will vary with the market based on the prime rate. Subject to credit approval. Regular account terms apply to non-promotional purchases and, after promotion ends, to promotional purchase.

No Interest if Paid Within Promotional Period

(These can be advertised as Deferred Interest promotions)

Under this promotion, no Interest Charges will be assessed if the promotional purchase balance (including any promotional fee) is paid in full within the promotional period. If the promotional purchase balance is not paid in full by the end of the promotional period, interest will be imposed from the date of purchase at the **Purchase APR** stated above. Minimum monthly payments are required. This promotion may be offered for periods of **6, 12, 17, 18, 20, or 24 months**.

Please keep this for your records. If you have any questions, please call us at the Customer Service number shown on your statement.

Cardholder News & Information

Synchrony Bank may continue to obtain information, including employment and income information from others about you (including requesting reports from consumer reporting agencies and other sources) to review, maintain or collect your account.

YOUR ACCOUNT IS PAST DUE. PLEASE PAY THE MINIMUM PAYMENT DUE OR CONTACT THIS OFFICE AT THE PHONE NUMBER LISTED ON YOUR STATEMENT.

EXHIBIT B

Cardholder News & Information
If you need to contact Synchrony about the loss of a Synchrony cardholder, you can submit a deceased notification form located at www.syf.com under the 'Contact Us' page. PLEASE READ THE IMPORTANT CHANGE-IN-TERMS NOTICE INCLUDED ON THIS BILLING STATEMENT. THIS NOTICE MAKES CHANGES TO THE CARDHOLDER AGREEMENT GOVERNING YOUR ACCOUNT.

Make Payment to: SYNCHRONY BANK
PO BOX 960061
ORLANDO, FL 32896-0061

Important Changes to Your Account Terms

The following is a summary of changes that are being made to your account terms. Unless otherwise noted, these changes will take effect on 06/08/22.

Revised Terms	
Late Payment Fee	Up to \$41.
Returned Payment Fee	\$30

Additional Information about the Late Payment Fee change

We are increasing the Late Payment Fee applicable to your account. The Late Payment Fee terms in your credit card agreement will be replaced with the Late Payment Fee terms shown below. Please keep this important document for your records.

"Late Payment Fee

We will charge this fee if we do not receive the total minimum payment due on your account by 5 p.m. (ET) on the due date. This fee is equal to:

1. \$30, if you have paid your total minimum payment due by the due date in each of the prior six billing cycles;

OR

2. \$41, if you have failed to pay your total minimum payment due by the due date in any one or more of the prior six billing cycles.

The late payment fee will never be more than the total minimum payment that was due."

Additional Information about the Returned Payment Fee change

We are adding a Returned Payment Fee, or increasing the existing Returned Payment Fee, as applicable, that is associated with your account. We will charge this fee if any check, other instrument, or electronic payment authorization you provide us in payment on your account, is not honored, returned unpaid or cannot be processed for any reason. The following terms will update your existing agreement. Please keep this important document for your records.

"We will charge this fee if any check, other instrument, or electronic payment authorization you provide us in payment on your account, is not honored, returned unpaid or cannot be processed for any reason. This fee is equal to \$30. The returned payment fee will not be more than the amount permitted by applicable law."

Minimum Payment: We are changing the total minimum payment calculation on your account. The Minimum Payment Calculation terms in your credit card agreement will be replaced with the Minimum Payment Calculation terms shown below. Please keep this important document for your records.

"Minimum Payment Calculation

Your total minimum payment is calculated as follows.

The sum of:

a. For the new balance shown on your billing statement (excluding any balance attributable to a special promotional purchase with a unique payment calculation), the greater of:

(i) \$30; or

(ii) 3.5% of the new balance shown on your billing statement; or

(iii) The sum of 1% of your new balance shown on your billing statement plus interest and late payment fees charged in the current billing cycle; PLUS

b. Any past due amounts; PLUS

c. Any payment due in connection with a special promotional purchase with a unique payment calculation.

We round up to the next highest whole dollar in figuring your total minimum payment. Your total minimum payment will never be more than your new balance."